AARI REALTY LLC

Independent Contractor Agreement

Licensed Real Estate Brokerage · Fort Myers, Florida

INCORPORATED DOCUMENTS

- Independent Contractor Agreement (ICA)
- Commission Structure Addendum (CSA)
- Exhibit A – Commission Fee Schedule
- Operations & Compliance Manual
- Transaction File Requirements Addendum
- Fair Housing Policy
- Advertising Policy
- Social Media Policy
- Errors & Omissions Insurance Addendum
- Record Retention & Confidentiality Policy
- Referral Bonus Policy
- Indemnification, Defense & Offsets Addendum
- Statement of Understanding & Policy Acknowledgment

NOTICE & AMENDMENT: Written notice may be provided by email or electronic posting in the Company's document portal. Unless a different effective date is stated, amendments take effect immediately upon notice, except that amendments reducing commission splits or increasing fees require written acknowledgment or fourteen (14) days' advance notice. Continued affiliation after the effective date constitutes acceptance of all updated or newly incorporated documents.

DEFINITIONS

"Agreement" or "ICA"	This Independent Contractor Agreement, including all Incorporated Documents.
"Associate"	The real estate licensee who executes this Agreement.
"Broker" or "Company"	Aari Realty LLC, a Florida limited liability company.
"Business Day"	Monday through Friday, 9:00 AM to 5:00 PM EST, excluding federal holidays and days when the Company office is closed due to emergency.
"Incorporated Documents"	All documents referenced in Section 18 and incorporated by reference into this Agreement, including the Commission Structure Addendum, Exhibit A, Operations & Compliance Manual, and all policies and addenda.
"Notice"	Written communication delivered by: (a) email to the Associate's email address on file; (b) posting in the Company's compliance platform; (c) electronic acknowledgment through Company systems; or (d) text message to the Associate's mobile number on file. Notice is deemed delivered and effective immediately upon sending or posting, regardless of whether the Associate has read or accessed the communication. It is the Associate's sole responsibility to monitor all designated communication channels. Notwithstanding the foregoing, any amendment that reduces commission splits, increases fees, or materially alters the Associate's economic terms requires either written acknowledgment of receipt or fourteen (14) days' advance notice before taking effect.
"Immediately"	Within twenty-four (24) hours of discovery unless a shorter timeframe is specified elsewhere in this Agreement.

SECTIONS 1 – 10

1. Independent Contractor Relationship

The Associate is engaged as an independent contractor, not an employee. The Broker will not withhold taxes, provide employee benefits, or control the Associate's daily work schedule. The Associate is solely responsible for tax filings, business expenses, professional tools, transportation, and maintaining required insurance. The Associate must complete a W-9 form and will receive a 1099-NEC for tax purposes.

Associate Authority

The Associate may execute real estate contracts, listing agreements, and buyer-broker agreements on behalf of Aari Realty LLC in the ordinary course of licensed real estate activity. The Associate has no authority to bind the Company to any financial obligation, fee arrangement, or agreement outside the ordinary course of real estate practice without prior written Broker approval.

2. **Exclusive Brokerage Affiliation** The Associate affirms they are not licensed with or actively affiliated with any other real estate brokerage or conducting brokerage activity outside of Aari Realty LLC. Limited outside affiliations (such as referral-only licenses in other states) require prior written approval from the Broker and must comply with Florida law. Engaging in unapproved brokerage activity constitutes immediate termination for cause and may result in forfeiture of pending commissions until compliance is verified.

3. Associate Responsibilities

Licensure. The Associate must maintain an active, current Florida real estate license at all times during the term of this Agreement.

Compliance with Laws and Rules. The Associate shall comply with all applicable federal, state, and local laws, rules, and regulations governing real estate practice in Florida.

Incorporated Documents. The Associate shall comply with all policies, procedures, and standards set forth in the Incorporated Documents.

Cybersecurity & Data Breach Reporting. The Associate must report any known or suspected data breach, unauthorized access, or cybersecurity incident to the Broker within four (4) hours of discovery.

Wire Safety. The Associate shall never transmit wire instructions via email or text message. Violation of this policy constitutes grounds for immediate termination.

Escrow Handling. The Associate shall not maintain or operate any escrow accounts. All escrow deposits must be handled in accordance with Company policy and Florida law.

MLS Compliance / Clear Cooperation. The Associate must enter all listings into the MLS within twenty-four (24) hours as required by MLS rules and the Clear Cooperation Policy.

Social Media & Advertising. All advertising and social media content related to real estate must receive prior Broker approval before publication or distribution.

TCPA Compliance. The Associate must comply with the Telephone Consumer Protection Act (TCPA) and all related federal and state telemarketing regulations.

Transaction Coordination. File organization is provided through Aari Transactions LLC, an affiliated entity. Associates may elect full TC services for an additional fee. Associate remains fully responsible for their transactions.

4. **Fair Housing Compliance** The Associate must comply with the Fair Housing Policy incorporated into this Agreement. Discriminatory practices of any kind are strictly prohibited. Violations may result in immediate termination and reporting to FREC.

5. **Confidentiality Definition.** Confidential Information includes all non-public information obtained during the Associate's affiliation with the Company, including client data, business strategies, proprietary systems, and financial information. **Use Restriction.** The Associate shall not copy, disclose, or distribute any Confidential Information to any third party without the prior written consent of the Broker. **Post-Termination.** Upon termination, the Associate shall immediately cease all use of Confidential Information, return all Company property within five (5) days, and certify deletion of all electronic copies. **Survival.** Confidentiality obligations survive termination indefinitely as to trade secrets, and for a reasonable period as to all other Confidential Information.

6. **Errors & Omissions (E&O;) Insurance** The Broker maintains an E&O; insurance policy covering the brokerage. The Associate is included under this policy at no upfront cost. The Associate agrees to pay the applicable deductible for any claim arising from the Associate's own conduct. The current deductible amount is set forth in the E&O; Addendum and may be updated upon written notice to the Associate. The Associate must report any potential claim to the Broker within twenty-four (24) hours of becoming aware of the circumstances giving rise to such claim.

7. Compensation

Commission Basis. The Associate's compensation shall be on a commission basis as set forth in the Commission Structure Addendum (CSA). The Associate shall receive no salary, draw, or guaranteed minimum compensation.

Conditions Precedent. Payment of commission is subject to the following conditions precedent: the transaction file is complete, the Broker has granted approval, funds have cleared, and the Associate is in Good Standing.

Cleared Funds. Wire transfers are considered cleared the same or next business day. Checks require three (3) to ten (10) business days to clear. Commission disbursement will occur within three (3) business days after all conditions precedent are satisfied.

Broker Authorization. The Broker has five (5) business days to grant or deny file approval. If approval is denied, the Associate has a three (3) day cure period to correct deficiencies.

Good Standing. Good Standing requires an active license, all fees paid, no suspension or disciplinary action, and all transaction files submitted in accordance with Company policy.

Post-Termination Compensation Floor. After termination, the Associate shall receive a minimum of fifty percent (50%) of the net commission on any pending transaction that closes, provided the Associate's file is complete and compliant.

Personal Transactions. The Associate must obtain prior Broker approval before engaging in any personal real estate transaction.

Overpayments & Deductions. Any overpayment must be repaid within five (5) days of notification. The Company may offset future commissions, up to a maximum of fifty percent (50%) per disbursement. Before applying any offset, the Company will provide five (5) business days' written notice. The Associate may submit a written dispute within that window. If no dispute is received, the offset proceeds. The Broker will provide written accounting of all allocated costs within ten (10) business days of deduction.

8. **Transaction Compliance** The Associate must comply with the Operations & Compliance Manual for all transactions. No commission shall be paid until the transaction file has been reviewed and approved by the Broker. Compliance with the Manual is a condition precedent to the payment of any compensation.

9. **Client Ownership Personally Generated Clients.** Clients personally generated by the Associate through the Associate's own efforts, relationships, and marketing are considered the Associate's property, subject to exclusions defined in this Agreement. **Company-Generated Leads.** Determined by the Broker based on source documentation, timestamp of first contact, and inquiry method used. **Lead Classification Appeal.** The Associate may appeal a lead classification determination in writing within seven (7) calendar days. The Broker shall respond within ten (10) business days.

10. **Referral & Co-Agent Commission Disputes** The Company shall not be responsible for referral or co-agent commission disputes unless the referral or co-agent agreement is in writing, signed by all parties, and approved by the Broker. All disputes shall be resolved through MLS arbitration and NAR dispute resolution procedures. The Company may withhold disputed commission amounts pending resolution.

SECTIONS 11 – 20

11. **Indemnification** For indemnification, defense, and offsets, see the Indemnification, Defense, and Offsets Addendum, which is incorporated by reference and controls this topic. Broker may exercise withholding and offsets consistent with that Addendum and the Operations & Compliance Manual.

12. Term & Termination

Term. This Agreement is effective for one (1) year and shall automatically renew annually unless terminated in accordance with this Section.

Termination At-Will. Either party may terminate this Agreement at any time, with or without cause, upon written notice. Termination shall not affect the Broker's right to collect any earned but unpaid fees, commissions, or other amounts due.

Wind-Down Period. In cases not involving Material Breach, fraud, wire violations, license revocation, or conduct posing immediate risk to clients or the brokerage, the Broker will provide a minimum five (5) business day wind-down period for active transactions only. This period is limited solely to completing pending transaction files and does not extend the Associate's authority to enter new transactions or representation agreements on behalf of the Company.

13. **Post-Termination Obligations** Upon termination, the Associate must: return all Company property, signage, and records within five (5) calendar days; cease all use of Company logos, branding, templates, and platforms; complete all outstanding compliance file requirements; reconcile commissions in accordance with the CSA; and update all online profiles within five (5) calendar days to remove Company affiliation. The Associate may continue working only with personally generated clients and has no rights to Company-generated leads, referrals, relocation clients, or advertising-sourced prospects after termination.

14. **Non-Solicitation** The parties acknowledge that this restriction is necessary to protect Aari Realty LLC's legitimate business interest in its trained associate workforce, confidential systems, and client relationships, and is reasonable in time and scope pursuant to F.S. §542.335. During affiliation and for twelve (12) months after termination, the Associate shall not directly or indirectly solicit or recruit Aari Realty Associates, staff, or contractors to leave the Company. Solicitation means direct, targeted outreach to specific identified individuals and does not include general public advertising or marketing.

15. Dispute Resolution

Internal Commission Disputes. Any dispute between Associates regarding the division of commissions shall be governed exclusively by the CSA. Disputes must be submitted in writing to the Broker, whose written determination shall be rendered within ten (10) calendar days.

Company vs. Associate Disputes. All other disputes shall proceed as follows: (1) Mediation First — good-faith mediation in Lee County, Florida; (2) Arbitration — if mediation fails, binding arbitration before a single arbitrator in Lee County, Florida, under the Florida Arbitration Code; (3) Attorneys' Fees — the prevailing party shall recover reasonable attorneys' fees and costs.

JURY TRIAL WAIVER

BY INITIALING BELOW, BOTH PARTIES KNOWINGLY AND VOLUNTARILY WAIVE ANY RIGHT TO A JURY TRIAL IN ANY ACTION, PROCEEDING, OR COUNTERCLAIM ARISING OUT OF OR RELATING TO THIS AGREEMENT OR THE PARTIES' RELATIONSHIP.

Associate Initials: ________ **Broker Initials:** ________

16. **Governing Law** This Agreement shall be governed by and construed under the laws of the State of Florida, without regard to conflicts of law principles.

17. **Force Majeure** Neither party shall be liable for failure to perform obligations when such failure is caused by events beyond their reasonable control, including: acts of God, natural disasters, hurricanes, war, terrorism, pandemic, government orders, utility failures, or cyberattacks. During a force majeure event, affected deadlines shall be extended by the duration of the event plus a reasonable cure period not to exceed ten (10) business days. Written notice must be provided within forty-eight (48) hours of the event.

18. **Entire Agreement; Notice; Order of Precedence; No Assignment Entire Agreement.** This ICA, together with all Incorporated Documents, constitutes the entire agreement between the parties and supersedes all prior negotiations, understandings, and agreements. **Modification.** This Agreement may not be modified except by a writing signed by both parties, except that policy updates and amendments may be made as set forth in the Notice definition and this Section. **Order of Precedence.** In the event of a conflict regarding compensation: (i) this ICA governs the legal relationship; (ii) the CSA governs commission calculation, application order, offsets, and disbursement mechanics; and (iii) Exhibit A governs commission plans, splits, fees, pricing, thresholds, and schedules. **No Assignment.** Neither party may assign this Agreement without prior written consent, except that the Company may assign in connection with a merger, sale of assets, or change of control.

19. **Severability; No Waiver Severability.** If any provision is held invalid or unenforceable, it shall be modified to the minimum extent necessary to make it enforceable while preserving the parties' original intent. **No Waiver.** The failure of either party to enforce any provision shall not constitute a waiver. No waiver shall be effective unless made in writing.
20. **Consolidated Acknowledgment; Electronic Signatures** By executing this ICA, the Associate acknowledges and agrees to all Incorporated Documents as they exist on the Effective Date. No separate signatures are required on any Incorporated Document. Future updates become binding upon notice under Section 18. Electronic signatures shall have the same force and effect as original signatures under Florida's Uniform Electronic Transactions Act (F.S. Chapter 668).

COMMISSION STRUCTURE ADDENDUM (CSA)

1–2. Purpose and Hierarchy. Establishes commission processing mechanics. ICA governs relationship, CSA governs calculation/disbursement, Exhibit A governs fees/pricing.

3. Commission Earned vs. Payable. Not earned until: transaction closed, funds cleared, docs approved, compliance met, Broker authorized. Earned ≠ automatically payable.

4. Application Order. Compliance holds → Company fees → Referral obligations → Offsets → Net to Associate.

5. Offsets & Deductions. Company authorized to offset unpaid balances, fees, chargebacks, and fines from commissions, subject to the five (5) business day advance notice and dispute window set forth in Section 7 of the ICA. Survives termination.

6. Plan Application. Plan at time of contract execution, not closing. Changes apply prospectively only.

7. Referrals. Subject to written agreements, cleared funds, and compliance with laws.

8. Personal Transactions. Qualifying: Associate or spouse on title. Standard transaction fee applies, no commission split. Growth plan exception: standard Growth split applies due to additional broker support.

9. License Status. Must hold active license during negotiation, execution, closing, and disbursement.

10–11. General. No employment relationship. Provisions survive termination. Constitutes entire agreement re: commission structure.

12. Amendments. This Addendum may be amended by the Company effective immediately upon notice for operational matters. Amendments reducing commission splits or increasing fees require written acknowledgment or fourteen (14) days' advance notice. Amendments apply to all transactions not yet under a fully executed purchase-and-sale agreement or listing agreement as of the date of notice.

13. Entire Agreement. This Addendum constitutes the entire agreement regarding commission structure.

14. Internal Deal Handling. A Company Assisted Transaction is any transaction where the Company reassigns, intervenes in, or provides substantial operational support beyond standard brokerage services, subject to a 50/50 split. A Referral is distinguished from a Reassignment: a Referral occurs when an Associate voluntarily introduces a client to another Associate and a written referral agreement is in place. Upon Reassignment, the original Associate forfeits all rights to compensation from that transaction.

EXHIBIT A — COMMISSION FEE SCHEDULE

Commission Plans

PLAN	SPLIT	RESIDENTIAL TXN FEE	VACANT LAND TXN FEE	DESCRIPTION
Mentorship Path	75% / 25%	$499	$299	Full support: TC, marketing, accountability, 1:1 with broker.
Growth	85% / 15%	$499	$299	Deal support when needed. Independent.
Max	100%	$499	$299	Fully independent. Just brokerage access.

Mentorship Path — Required Entry

All new Associates begin on the 75/25 Mentorship Path at $89/month plus the $199/year E&O; + Compliance fee. Advancement to Aari Growth or Aari Max is based on transaction requirements as defined in Section 1.3 below.

1.3 Commission Plan Changes

Eligibility. An Associate may request a commission plan change only after completing a minimum of five (5) closed residential sales transactions — excluding rentals and vacant land — with fully compliant files under Broker supervision at Aari Realty LLC.

Request Process. The Associate submits a written request to the Broker. The Broker will approve or deny in writing within five (5) business days. Approval is at the Broker's sole discretion based on compliance history, transaction quality, and performance.

Effective Date. An approved plan change takes effect on the first day of the calendar month following the Broker's written approval.

Transaction Protection. The Associate's current plan applies to all transactions under a fully executed purchase-and-sale agreement or listing agreement dated on or before the Broker's written approval date.

Frequency Limit. An Associate may not submit a new plan change request within sixty (60) days of their most recent plan change effective date.

Downgrade Rule. The same eligibility, process, effective date, and frequency limit apply in both directions.

Recurring Fees

FEE	AMOUNT	SCHEDULE
Brokerage Access — Mentorship Path	$89/month	Monthly, prorated at onboarding
Brokerage Access — Growth	$89/month	Monthly, prorated at onboarding
Brokerage Access — Max	$99/month	Monthly, prorated at onboarding
E&O + Compliance	$199/year	Annual, due on anniversary

Administrative & Conditional Fees

FEE	AMOUNT
Personal Transaction (Residential)	Standard plan transaction fee applies
Personal Transaction (Land)	Standard plan transaction fee applies
Admin Cost Rate	$150/hour
Late Payment	$25
Returned Payment	$25
Reactivation	$50
Sign Replacement (Open House)	$25
Sign Replacement (For Sale)	$35

Optional Add-Ons

ADD-ON	AMOUNT	DESCRIPTION

CRM System (Lofty)	$49/mo	AI-powered CRM, lead tracking, IDX, dialer, texting
Brand Builder	$79/mo	Content planning, video, social media strategy

Referral Compensation. Admin fee: 10% of referral payment, minimum $100. Recruiting Incentive: $100.

8. Enforcement. This Exhibit A may be amended by the Company effective immediately upon notice for operational matters. Amendments reducing commission splits or increasing fees require written acknowledgment or fourteen (14) days’ advance notice. No amendment alters transactions already under a fully executed contract as of the date of notice.

OPERATIONS & COMPLIANCE MANUAL

ORDER OF PRECEDENCE: (1) Independent Contractor Agreement → (2) Commission Structure Addendum → (3) Exhibit A — Commission Fee Schedule → (4) This Operations & Compliance Manual → (5) All other addenda by date, later-dated documents controlling.

Section 1. Definitions

"Active" — Completed all onboarding requirements, current license, all fees paid, eligible for transactions. "Inactive" — Requested or placed in inactive status; not eligible for new transactions. "Good Standing" — (a) current active Florida license; (b) no outstanding fees; (c) no material policy violations; (d) current E&O; and auto insurance; (e) compliant with document submission deadlines; (f) not subject to active suspension or disciplinary action. "Material Breach" — (a) violations resulting in client harm; (b) regulatory investigation by DBPR, FREC, MLS, or NAR; (c) repeated violations after written warning; (d) fraud, misrepresentation, discrimination, or fair housing violations; (e) failure to cure a non-material breach within ten (10) business days. "Abandoned Commission" — closing documents not submitted within 48 hours of closing, or failure to respond to Broker requests within 10 business days. "Complete File" — all required documents submitted, compliance checklist complete, file reviewed and approved by Broker. "Company-Generated Lead" — any inquiry originating through Company marketing, advertising, lead purchase programs, referral partnerships, or Company-funded activities.

Section 2. Commissions & Collections

The Company may withhold disputed commission amounts until resolution. Where the Company incurs internal administrative time or outside legal costs to secure or defend a commission, those costs may be allocated proportionally to the Associate at the rate set forth in Exhibit A. In transactions where the Associate receives 90% or more of the gross commission, cost allocation shall be capped at 80% of total costs incurred. The Broker will provide written accounting within ten (10) business days of any deduction.

Section 3. Company Property & Records

All listings, pending sales, transaction documents, checklists, communications, and materials created or obtained during affiliation are Company property. Associates must maintain transaction materials in Company systems. Upon termination, all Company materials must be returned within three (3) business days.

Section 4. Wire & Funds Handling

Associates are prohibited from providing, relaying, drafting, or transmitting wire or funds transfer instructions to any party by any means. Violation constitutes a Material Breach and may result in immediate termination and personal liability for any resulting losses. Associates must proactively warn every client in writing about wire fraud risks at or before contract execution.

Section 5. Regulatory Compliance

All Associates must maintain compliance with: Florida Statute Chapter 475; FREC Rules; DBPR requirements; MLS Rules; NAR Code of Ethics (if applicable); Fair Housing Act and Florida Fair Housing Act; and all applicable federal, state, and local laws. Associates must complete all mandatory continuing education and report completion to the Broker at least ten (10) business days before the DBPR renewal deadline.

Section 6. Transaction Documentation & File Submission

All transactions must be submitted for Broker review and approval in accordance with F.S. §475.25 and FREC Rule 61J2-14.010. Associates must upload all transaction documents to the Company's designated compliance platform within forty-eight (48) hours of execution or receipt. Complete files must be submitted at least seven (7) days prior to closing for final Broker review.

Section 7. Broker Review & Contract Execution

All contracts, listing agreements, buyer-broker agreements, leases, and amendments must be submitted to the Broker for review and approval before presentation or execution unless the Associate holds an active Florida Broker license.

Section 8. Prohibited Conduct

Strictly prohibited: misrepresentation, fraud, or dishonest dealing; discrimination or fair housing violations; failure to disclose material facts or conflicts of interest; unauthorized practice of law; commingling of client funds; advertising without required Broker identification and approval; solicitation of Company clients or Associates upon termination; failure to submit transaction documents within required timeframes; engaging in real estate activity under another broker's license while affiliated with the Company.

Section 9. Transaction File Requirements

All Associates must submit complete transaction files per F.S. §475.5015 and FREC Rule 61J2-10.030. The Broker is required to maintain transaction records for a minimum of five (5) years. Submission Deadline: all documents must be uploaded within 48 calendar hours of execution or receipt, whichever occurs later. Complete files must be submitted at least seven (7) days before closing for final Broker review.

Section 10. Compliance & Document Submission Addendum

All fully executed contracts, addenda, disclosures, and other transaction-related documents must be submitted for compliance review within forty-eight (48) hours of execution. Failure to submit may result in: commission withholding; suspension of system access; mandatory compliance review; and termination for repeated or material violations.

Section 11. Broker Execution & Review Addendum

11.1 Broker Signature Required for: Seller to Buyer's Broker Compensation Agreement; Buyer Broker Compensation Agreement; Arbitration or Commission-Disbursement Agreements; Outside-Broker Referral Agreements; Company-Generated Lead Transactions; Associate Personal Transactions; and any form requiring Broker Authorization. 11.2 Associate Signature Permitted for standard FAR/BAR contracts that do not require Broker authorization. Signature format: Aari Realty LLC | [Associate's Full Name]. 11.3 All executed documents must be uploaded within 48 hours of signature. No CDA issued until all required documents are uploaded, checklists complete, and file reviewed and approved by Broker. 11.4 Broker will review submitted contracts within 48 hours during normal business hours for complete submissions.

Section 12. Fair Housing Policy

Aari Realty LLC is committed to full compliance with the Federal Fair Housing Act (Title VIII), Florida Fair Housing Act (F.S. Chapter 760), ADA, and all applicable local ordinances. Associates may not refuse to show, rent, sell, or negotiate based on a protected class; provide different terms based on a protected class; steer clients based on protected characteristics; make discriminatory statements; or retaliate against any person for exercising fair housing rights. All Associates must complete Company-approved fair housing training within fourteen (14) days of affiliation.

Section 13. Advertising Policy

All advertising must comply with F.S. §475.42, FREC Rule 61J2-10.025, and applicable MLS rules. All advertisements must prominently display: Aari Realty LLC. Associates may not advertise in their own name without including the Company name, advertise under a team name or DBA without prior written Broker approval, or use misleading or deceptive language. All digital marketing must include the Company name.

Section 14. Social Media Policy

All social media activity must comply with applicable federal, state, and local laws, including advertising and marketing regulations, fair housing laws, antitrust laws, and the NAR Code of Ethics. Associates are strictly prohibited from using unauthorized third-party content. Associates must protect client confidentiality on social media and obtain written permission before posting any content that includes or references a client.

Section 15. Sign Borrowing Policy

Replacement fees for lost, stolen, or damaged signs are set forth in Exhibit A. Signs must be returned within 48 hours of event completion. Lost or damaged signs must be reported immediately.

Section 16. Errors & Omissions Addendum

The Company maintains E&O; insurance covering the real estate brokerage activities of the Broker and affiliated Associates. Coverage is subject to policy limits, exclusions, and conditions. Exclusions include: intentional misconduct, fraud, or criminal acts; activities outside the scope of the ICA; personal business activities unrelated to Company transactions. Auto Insurance: Associates transporting clients must maintain personal auto insurance with liability limits of at least $100,000 per person / $300,000 per accident.

Section 17. Record Retention & Confidentiality

Aari Realty LLC is required by Florida law to maintain transaction records for a minimum of five (5) years from the date of closing or termination. Associates must submit all transaction documents to the Company's compliance platform within forty-eight (48) hours of execution or receipt.

Section 18. Referral Bonus Policy

Eligibility: referring Associate must remain Active through payment; recruited Associate must be a newly affiliated licensed Florida sales associate; recruited Associate must complete onboarding and pay all required fees; and must remain Active and in Good Standing for at least thirty (30) consecutive days after affiliation. Payment will be issued via ACH, check, or other method designated by the Company and reported on Form 1099-NEC.

Section 19. Company Leads Addendum

Company-generated leads are Company property. The Broker assigns and may reassign leads for missed service levels. Compensation on Company leads is split 50/50 between Associate and Company after referral fees and approved marketing deductions. Service Level Minimums: first contact attempt within 2 business hours; daily contact attempts for the first 7 days, then 3× weekly until qualified or closed; notes logged in CRM after every touch.

Section 20. Personal Transactions Addendum

Applies to any transaction in which the Associate has a direct or indirect ownership interest. Subject to the standard transaction fee and compliance review requirements set forth in Exhibit A. No commission split applies to qualifying personal transactions. The Associate's status as a real estate licensee must be disclosed in the purchase contract or other applicable transaction documents.

Section 21. MLS & Brand Standards Addendum

Associates must comply with NAR Clear Cooperation and applicable MLS rules. All listings must be entered into MLS within twenty-four (24) hours of obtaining seller signature on listing agreement. All advertising must include Aari Realty LLC as broker of record. Team/DBA usage requires prior written Broker approval.

Section 22. Team Addendum

Team lead is responsible for coordinating team activities, monitoring branding compliance, and assisting the Broker in ensuring team members follow Company policies. The Broker retains all supervisory responsibility under Florida law. Intra-team splits must be on file before the first shared deal. Submit roster changes within 48 hours.

Section 23. CDA Workflow Addendum

The CDA is prepared and added to the transaction by the Broker or Compliance Team. Agents do not create, edit, or attach the CDA. Commission is earned and payable only after complete, compliant file and Broker approval. Payout timing: within 3 business days after funds clear and CDA conditions are satisfied.

Section 24. Billing & Proration Addendum

All recurring fees are non-refundable. The monthly Brokerage Access Fee is due on the first (1st) day of each month, prorated at onboarding. The annual E&O; + Compliance Fee is due on the Associate's onboarding anniversary date. Failed payments may result in: late payment fees; returned payment fees; reactivation fees; suspension of system access; commission withholding; or termination.

Section 25. Termination Addendum

Access removal within 24 hours. Listing transfers processed upon written seller consent and Company release. Keys/lockboxes and Company property returned within 3 business days. Departed Associates must deliver all final documents and complete all outstanding files within ten (10) business days of termination. Files not completed within this timeframe shall be deemed Abandoned Commissions.

Section 26. Referrals LLC Policy

All referral compensation rules, including associate/broker splits and any administrative retention on incoming referrals, are governed solely by the Aari Referrals LLC — Referral Compensation Policy.

Section 27. Reserved

This section is reserved for future use.

Section 28. Indemnification & Defense Addendum

28.1 Indemnification. To the fullest extent permitted by law, Associate agrees to indemnify, defend, and hold Broker harmless from and against any and all claims, demands, actions, damages, losses, liabilities, fines, penalties, and costs arising out of or related to: any act, omission, negligence, misrepresentation, or misconduct by Associate; any failure to comply with applicable laws, FREC rules, MLS regulations, or Brokerage policies; any unauthorized promises or guarantees made by Associate; or any disputes related to incomplete, inaccurate, or untimely documentation. This indemnification does not apply to claims arising solely from the Broker's independent negligence or willful misconduct. Broker agrees to indemnify Associate from any claim arising solely from Broker's independent negligence or willful misconduct unrelated to any act or omission of Associate. 28.2 Defense, Insurance, and Offsets. Broker may assume control of the defense for any covered matter. Associate must notify Broker within twenty-four (24) hours of any demand, complaint, investigation, or threatened claim and must fully cooperate. Broker may deduct or withhold commissions in an amount reasonably calculated to cover potential or actual losses, subject to the advance notice and dispute provisions of Section 7 of the ICA. Upon final resolution, Broker will reconcile and remit any excess amounts within thirty (30) days of final resolution, or within sixty (60) days if litigation is pending. 28.3 Survival. The indemnity, defense, and hold-harmless obligations survive termination.

Section 29. Post-Departure Compensation Addendum

29.1 Procuring Cause. Under Florida law, all procuring cause rights belong to the brokerage, not the sales associate. Aari retains all procuring cause rights for any buyer or seller introduced to real property through Aari, regardless of whether the Associate remains affiliated with the Company. Associates who dispute a procuring cause determination may submit a written appeal under Section 31 of this Manual. 29.2 Protection Period. Any protection period contained in a Buyer Brokerage Agreement, Listing Agreement, or compensation agreement survives the Associate's departure. Aari retains full compensation rights for any contract, offer, or closing involving a buyer or seller introduced through Aari during the protection period. 29.3 Broker Discretion on Post-Departure Compensation. The Broker retains sole discretion to determine the compensation split for any transaction in which the Associate has departed prior to closing. The Associate's prior commission plan does not survive departure. The minimum floor for post-departure compensation is governed by the Commission Structure Addendum. 29.4 Aari Paid First. All compensation due to Aari must be paid directly to Aari Realty LLC. Departing Associates receive their portion only after Aari receives funds in full, confirms accurate disbursement, completes audit compliance, and processes internal accounting. 29.5 Prohibition Against Interference. Departing Associates may not interfere with Aari's compensation status, instruct title companies, or attempt to influence representation. 29.6 Survival. This Addendum remains binding after the Associate's departure.

Section 30. Force Majeure

In the event of natural disaster, hurricane, widespread system outage, or other force majeure event, the Broker may extend deadlines on a case-by-case basis. Associates must provide initial notice within forty-eight (48) hours of the event and submit supporting documentation within five (5) business days.

Section 31. Dispute Resolution & Appeals

Associates who wish to contest any enforcement decision, fee assessment, or suspension must submit a written appeal to the Broker within ten (10) business days of receiving notice of the decision. The appeal must include: a clear statement of the decision being appealed; the Associate's position and supporting facts; and any documentation supporting the appeal. The Broker will review and respond in writing within fifteen (15) business days. The Broker's decision on appeal is final and binding. Filing an appeal does not toll, extend, or suspend any other deadlines or obligations unless the Broker grants a specific written extension.

W-9 COLLECTION & TAX ACKNOWLEDGMENT

This acknowledgment must be completed at onboarding. No commission disbursement will be made until a valid IRS Form W-9 is received. The Associate confirms they have completed and submitted a valid IRS Form W-9. The Associate acknowledges they are engaged as an independent contractor; Aari Realty LLC will not withhold federal income tax, Social Security tax, or Medicare tax; Aari Realty LLC will issue a Form 1099-NEC for each calendar year in which the Associate receives commission payments totaling $600.00 or more; the Associate is solely responsible for all federal, state, and local tax obligations, including estimated quarterly tax payments; and the Associate must notify Aari Realty LLC in writing within thirty (30) days of any change to their legal name, TIN, SSN, or tax classification requiring an updated W-9. Aari Realty LLC may apply backup withholding if required by the IRS.

LICENSE VERIFICATION & ACTIVE STATUS ACKNOWLEDGMENT

This acknowledgment is required before the Associate may conduct any real estate activity under Aari Realty LLC’s brokerage license. The Associate must maintain an active, current, and unrestricted Florida real estate license in good standing with DBPR at all times. The Associate is solely responsible for monitoring their license expiration date, completing all required continuing education, and renewing their license on time. The Associate must notify the Qualifying Broker in writing within twenty-four (24) hours of any change to their license status, including: license expiration, suspension or revocation, voluntary surrender, disciplinary action, or any investigation or proceeding initiated by DBPR, FREC, MLS, or NAR. Any real estate activity conducted under an inactive, suspended, expired, or revoked license constitutes a violation of F.S. §475.42 and grounds for immediate termination, forfeiture of pending commissions, and reporting to DBPR. Aari Realty LLC will conduct ongoing monthly license verification for all affiliated Associates.

AFFILIATED BUSINESS DISCLOSURE: RESPA COMPLIANCE

This disclosure is required under RESPA, 12 U.S.C. §2607(c)(4), and must be signed at onboarding. Aari Realty LLC discloses affiliated business relationships under common ownership by Marlenyi Paredes: (1) Aari Transactions LLC — transaction coordination, file organization, compliance support; (2) Aari Referrals LLC — referral-only real estate affiliation and referral fee processing. When referring a client to an affiliated entity, the Associate must provide the client with a written Affiliated Business Disclosure prior to or at the time of referral. Clients are under no obligation to use the services of any affiliated entity. The Associate will not receive any referral fee, bonus, or additional compensation from any affiliated entity beyond the compensation structure set forth in Exhibit A. Pursuant to RESPA Section 8(c)(4), 12 U.S.C. §2607(c)(4), and 24 C.F.R. §3500.15.

MLS RULES ACKNOWLEDGMENT

This acknowledgment must be signed at onboarding before the Associate may access or use any MLS system under Aari Realty LLC’s membership. The Associate agrees to comply with the current rules and regulations of all MLS boards through which they conduct business, as amended from time to time. The Associate must enter all listings into the applicable MLS within twenty-four (24) hours of obtaining seller signature, in compliance with NAR’s Clear Cooperation Policy. The Associate must comply with all MLS rule changes implemented in connection with the NAR settlement effective August 17, 2024, including the prohibition on offering buyer broker compensation in any MLS field. Any MLS fine or penalty imposed as a result of the Associate’s violation is the Associate’s sole financial responsibility. The Associate must notify the Qualifying Broker within twenty-four (24) hours of receiving any MLS inquiry, fine notice, complaint, or disciplinary communication.

BUYER BROKERAGE AGREEMENT POLICY ACKNOWLEDGMENT

Effective August 17, 2024, NAR implemented practice changes requiring written Buyer Brokerage Agreements with buyer clients before touring any property, incorporated into FGCMLS rules and subject to oversight by FREC under F.S. §475.278. The Associate must obtain a signed, written Buyer Brokerage Agreement with every buyer client before conducting any property showing, tour, or property preview. The Associate must use only Company-approved or Florida Realtors/Florida Bar approved forms. All buyer broker compensation terms must be clearly disclosed in the Buyer Brokerage Agreement. The Associate must not communicate or offer buyer broker compensation through any MLS field. Every executed Buyer Brokerage Agreement must be submitted to the compliance platform within forty-eight (48) hours of execution. Failure to obtain a signed agreement before showing property constitutes a Compliance Issue and may result in: written warning and mandatory compliance review; commission withholding; suspension of transaction privileges; termination; and reporting to FREC.

WIRE FRAUD & CYBERSECURITY ACKNOWLEDGMENT

The Associate is strictly prohibited from transmitting, forwarding, drafting, creating, or relaying wire transfer instructions, banking information, or funds transfer details to any party by any means, including email, text message, social media, or any electronic communication platform. All wire instructions must be verified directly by the client with the receiving title company or escrow agent by telephone, using a phone number independently obtained from a trusted source. The Associate must proactively warn every buyer and seller client in writing about the risk of wire fraud at or before contract execution. The Associate must use secure, password-protected email accounts for all real estate communications. The Associate must report any suspected phishing attempt, email compromise, unauthorized account access, or attempted wire fraud to the Qualifying Broker immediately and no later than four (4) hours of discovery. If a wire fraud attempt has occurred or is in progress: notify Qualifying Broker within four (4) hours; contact the title company immediately; preserve all communications; file a report with the FBI's IC3 at ic3.gov; and make no admission of fault without prior written authorization from the Qualifying Broker. Violation constitutes an immediate termination event.

CONFIRMATION OF COMMUNICATION

By signing this Agreement, the Associate confirms that all notices, disclosures, and communications from Aari Realty LLC may be delivered electronically to the email address and phone number provided below. The Associate is responsible for ensuring this contact information remains current and agrees to notify the Brokerage in writing of any changes.

Email:	
Phone:	

EXECUTION

By executing this Agreement, the Associate acknowledges that they have read, understand, and agree to all terms and conditions set forth in this Independent Contractor Agreement and all Incorporated Documents. Electronic signatures shall have the same force and effect as original signatures under Florida's Uniform Electronic Transactions Act (F.S. Chapter 668).

ASSOCIATE

Signature

Printed Name

Date

Florida License Number

QUALIFYING BROKER

Signature

Marlenyi Paredes
Printed Name

Date

BK3530153
Broker License Number